

Amendment No. 1 to HB0085

White
Signature of Sponsor

AMEND Senate Bill No. 158

House Bill No. 85*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-6-1021(a), is amended by deleting the subsection and substituting:

(a) In accordance with § 49-6-1022, each LEA shall integrate:

(1) For elementary school students, a minimum of forty (40) minutes of physical activity per full school day; and

(2) For middle and high school students, a minimum of ninety (90) minutes of physical activity per full school week.

SECTION 2. Tennessee Code Annotated, Section 49-6-1021(b), is amended by deleting the subsection and substituting:

(b)

(1) Physical activity may include walking, jumping rope, playing volleyball, or other forms of physical activity that promote fitness and well-being. Walking to and from class is not physical activity for purposes of this section.

(2) To satisfy the requirements of subdivision (a)(1):

(A) Physical activity:

(i) Must include unstructured play outside, unless weather conditions negatively impact reasonable execution of physical activity outside; and

(ii) Does not include:

(a) Time during which a student is permitted to use
an electronic device; or

(b) Time spent by a student in a physical education
class; and

(B) A student shall not be withheld from participating in physical
activity as a form of punishment.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.